

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
The John F. Kennedy Center for the Performing Arts
PART I – BACKGROUND

Date: March 20, 2025

- 1. Program Office: Contracting Office**
- 2. Contracting Officer's Representative:** [REDACTED]
- 3. Description of Services Required: Annual pumping/cleaning of the Oil Water Separators and Sewage Ejector Pits**
- 4. Need By Date or Period of Performance: July 30, 2025**
- 5. Estimated Amount:** [REDACTED]
- 6. Proposed Contractor/Manufacturer and contact information**
JPG Services
8280 Stayton Drive Ste M
Jessup, MD 20794
POC: [REDACTED]

PART II - Justification

1. Authority Cited:

The statutory authority permitting other than full and open competition is 41 U.S.C. 253(c) (2) in accordance with;

[X] FAR 6.302-1. only one responsible source

___ This authority shall be used, if appropriate, in preference to the authority in [6.302-7](#); it shall not be used when any of the other circumstances is applicable. Use of this authority may be appropriate in situations such as the following (these examples are not intended to be all inclusive and do not constitute authority in and of themselves): (1) When there is a reasonable basis to conclude that the agency's minimum needs can only be satisfied by unique supplies or services available from only one source or only one supplier with unique capabilities; (2) The existence of limited rights in data, patent rights, copyrights, or secret processes; the control of basic raw material; or similar circumstances, make the supplies and services available from only one source (however, the mere existence of such rights or circumstances does not in and of itself justify the use of these authorities) (see [Part 27](#)). (3) When acquiring utility services (see [41.101](#)), circumstances may dictate that only one supplier can furnish the service (see [41.202](#)); or when the contemplated contract is for construction of a part of a utility system and the utility company itself is the only source available to work on the system. (4) When the agency head has determined in accordance with the agency's standardization program that only specified makes and models of technical equipment and parts will satisfy the agency's needs for additional units or replacement items, and only one source is available.

___ **Brand name.** An acquisition that uses a brand name description or other purchase description to specify a particular brand name, product, or feature of a product, peculiar to one manufacturer does not provide for full and open competition regardless of the number of sources solicited.

[] FAR 6.302-2. Unusual and compelling urgency

An unusual and compelling urgency precludes full and open competition; and (2) Delay in award of a contract would result in serious injury, financial or other, to the Government

[] FAR 6.302-3. Industrial Mobilization; engineering, developmental, or research capability; or expert services.

This authority may be used for any acquisition when disclosure of the Government's needs would compromise the national security (e.g., would violate security requirements); it shall not be used merely because the acquisition is classified, or merely because access to classified matter will be necessary to submit a proposal or to perform the contract.

[] FAR 6.302-4 International Agreement, Unusual and compelling urgency.

This authority may be used during the following circumstances; (1) When a contemplated acquisition is to be reimbursed by a foreign country that requires that the product be obtained from a particular firm as specified in official written direction such as a Letter of Offer and Acceptance; or (2) When a contemplated acquisition is for services to be performed, or supplies to be used, in the sovereign territory of another country and the terms of a treaty or agreement specify or limit the sources to be solicited.

[] FAR 6.302-2, Authorized or required by statute.

This authority may be used when statutes, such as the following, expressly authorize or require that acquisition be made from a specified source or through another agency: (1) Federal Prison Industries (UNICOR)—[18 U.S.C. 4124](#) (see [Subpart 8.6](#)). (2) Qualified Nonprofit Agencies for the Blind or other Severely Disabled—[41 U.S.C. 46-48c](#) (see [Subpart 8.7](#)). (3) Government Printing and Binding—[44 U.S.C. 501-504](#), 1121 (see [Subpart 8.8](#)). (4) Sole source awards under the 8(a) Program [15 U.S.C. 637](#) (see [Subpart 19.8](#)). (5) Sole source awards under the HUB Zone Act of 1997—[15 U.S.C. 657a](#) (see [19.1306](#)). (6) Sole source awards under the Veterans Benefits Act of 2003 ([15 U.S.C. 657f](#)).

[] FAR 6.302-2, National security

This authority may be used for any acquisition when disclosure of the Government's needs would compromise the national security (e.g., would violate security requirements); it shall not be used merely because the acquisition is classified, or merely because access to classified matter will be necessary to submit a proposal or to perform the contract.

[] FAR 6.302-2, Public interest

REQUIRES AGENCY HEAD APPROVAL.

2. Describe the supply/service required to meet the agency's need:

The Kennedy Center has four (4) oil water separators and two (2) ejector pits which require annual pumping/cleaning to keep them optimal condition. The oil water separator pits collect the sludge and oil that comes off vehicles and enters the drain system. The pits then separate the water from the hazardous waste, this waste sits in the pit and requires a pump truck to come once a year to empty the pit. The ejector pits are used to collect sewage from the bathrooms below grade and pumps it out the sewage system. These ejector pits need to have the walls hit with high pressure water hose and pumped out to remove the solid waste. Without regular maintenance the pits do not work properly or will cause premature failure. The purpose of this requirement is to obtain licensed plumbing and mechanical contractor services to remove and dispose of waste and hazardous materials at an appropriate disposal facility.

3. State why the proposed contractor's unique qualification or nature of the acquisition requires use of the authority cited:

JPG Services is the previous incumbent contractor and is part of Exigent, which focuses on critical commercial HVAC and mechanical services. JPG is licensed to perform the services required. JPG Services has the resources to accommodate the facility's height restrictions to perform the services within the required performance schedule. JPG Services is licensed and has waste and hazardous materials disposal policies in compliance of the District of Columbia Municipal Regulations (DCMR), and Environmental Protection Agency (EPA) regulations.

4. Efforts made to promote Competition:

To promote competition, a request for quote (RFQ) was published in SAM.gov on two separate occasions. The first RFQ posted as a small business set aside on January 6, 2025. As a result of unreasonable pricing received, the RFQ was cancelled in SAM.gov on January

27, 2025. The RFQ reposted on SAM.gov on January 30, 2025 as an unrestricted acquisition on closed on February 21, 2025. A late quote was received on March 5, 2025.

5. **Price reasonableness:**

Price reasonableness will be determined by a comparison of historical pricing for the same or similar services with the independent government cost estimate against the quote received from JPG Services.

6. **Market Research**

Market research identified three firms with the capability to perform services from GSA eLibrary sources, including the incumbent.

7. **Any other facts.**

A statement of work was provided with the RFQ's published in SAM.gov. An amendment provided a drawing of the oil/water pit locations in the facility; and provided responses to RFI.

Two firms expressed an interest in this procurement.

[REDACTED]

PART III - CERTIFICATION/APPROVAL

1. **Program Office:**

I certify that this request to procure services using the authorities cited in FAR 6.3 (Other than Full and Open Competition) is made in good faith that the supporting data and information are accurate and complete to the best of my knowledge and belief.

[REDACTED]

3/21/2025

[REDACTED]

Date

2. **Contracting Officer:**

I certify that the justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Contracting Officer

Date